

20STCV32549 20STCV32549

County: los-angeles

Division: Civil Law and Motion

Department: 406

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Case Number: 20STCV32549 Hearing Date: June 29, 2026 Dept: 406

DENISE GREENE, an
individual

Plaintiff,

v.

CITY OF LOS ANGELES, a Municipal
Corporation; and DOES 1 through 50

Defendant.

Case No.: 20STCV32549

Hearing Date: June 29, 2026

[TENTATIVE]

order RE:

plaintiff's motions to quash subpoenas
for medical records (CRS# 117320075340)

BACKGROUND

On August 26, 2020, Plaintiff Denise
Greene ("Plaintiff") filed this action against Defendant City of Los Angeles ("Defendant")
for sexual harassment. Plaintiff alleges that she was subject to sexual
harassment as an employee of Defendant and seeks damages for emotional

distress, including depression, anxiety, related emotional injuries, and a 2018 miscarriage that is part of her emotional distress claim.

On May 6, 2026, Defendant served subpoenas on Kaiser Permanente and UCI Medical Center seeking Plaintiff's medical records. On May 28, 2026, Plaintiff filed a motion to quash the subpoenas for her medical records. Defendant filed an opposition on June 22, 2026.

LEGAL STANDARD

"If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things ..., the court, upon motion reasonably made by [a party] . . . may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders." (Code Civ. Proc., § 1987.1, subd. (a), (b).) Good cause must be shown to compel a nonparty to produce documents. (See *Calcor Space Facility, Inc. v. Superior Court* (1997) 53 Cal.App.4th 216, 224.)

DISCUSSION

The subpoenas at issue seek Plaintiff's medical records from seven medical providers. They request a broad range of medical records, including medical, psychiatric, billing, laboratory, imaging, pharmacy, and physical therapy records, as well as "any other documents." (Barth Decl. ¶¶ 4-5 & Ex. A-G.)

By seeking emotional distress damages, Plaintiff has placed her mental condition at issue. Indeed, "by asserting a causal link between her mental distress and defendants' conduct, plaintiff implicitly claims it was not caused by a preexisting mental condition, thereby raising the question of alternative sources for the distress." (*Vinson v. Sup. Ct.* (1987) 43 Cal.3d 833, 840.) Thus, the medical information sought is relevant to the emotional distress claim in litigation and constitutes admissible evidence. (See Code Civ. Proc., § 2017.010.)

Medical records may be subject to privacy, but in this case the records are directly relevant, and the interest in disclosure outweighs the privacy interest. (See *Williams v. Sup. Ct.* (2017) 3 Cal.5th 531, 552.) Moreover,

the privacy concerns are adequately addressed through a protective order. (Hill v. National Collegiate Athletic Assn. (1994) 7 Cal.4th 1, 38.)

CONCLUSION

Plaintiff's motions to quash

subpoenas are DENIED. Production shall be subject to a protective order.

Sanctions are denied as the parties acted with substantial justification.